

TAB 17



Board of Education Report

File #: Rep-279-23/24, Version: 1

AB 922 - Los Angeles County Plan for Expelled Students

June 4, 2024

Student Health and Human Services, Student Discipline and Expulsion Support

Action Proposed:

Approval of the AB 922 - Los Angeles County Plan for Expelled Students.

Background:

Education Code (EC) Section 48926 requires that the Los Angeles County Superintendent of Schools, in conjunction with superintendents of the school districts within the Los Angeles County, develop a triennial plan for providing services to expelled students. The plan provides a basic overview of how the mandates of EC Section 48926 have been addressed in Los Angeles County and suggestions to better serve district needs. The attached plan was approved by the County Board at its regular meeting on March 20, 2024.

Expected Outcomes:

At the time an expulsion of a pupil is ordered, staff shall ensure that an educational program is provided to the pupil who is subject to the expulsion order for the period of the expulsion. For pupils who are expelled without suspended enforcement, staff shall refer the expelled pupil to the Los Angeles County Office of Education (LACOE) for placement in a program operated by the Division of Pupil Services.

Board Options and Consequences:

Under Education Code section 48926, county superintendents of schools, in conjunction with the superintendents of the school districts, must submit this plan for educational services to expelled pupils. The plan must be adopted by the governing boards of all school districts in the county. Approval of the attached plan by the Los Angeles Unified School District Board of Education is essential for satisfying this requirement. Without approval of this plan, the County Superintendent of Schools will be unable to submit the plan on schedule, which may result in a lack of educational services for pupils who are expelled and referred to LACOE programs.

Policy Implications:

Approval by the board will bring the district and LACOE into compliance with the requirements of Education Code Section 48926.

Budget Impact:

There are no budgetary changes in this plan that would negatively impact the district.

Student Impact:

Approval by the board will ensure students continue to have options for placement during their expulsion that will meet student needs and ensure student safety.

Equity Impact:

Component	Score	Score Rationale
Recognition	2	The AB 922 - Los Angeles County Plan for Expelled Students focuses on services and supports for students who are expelled.
Resource Prioritization	4	The AB 922 - Los Angeles County Plan for Expelled Students includes services and supports for students who are expelled, and the District's AB 922 program tailors services to the individual student's needs.
Results	4	The AB 922 - Los Angeles County Plan for Expelled Students ensure students who have been expelled and are referred, for safety reasons, to LACOE programs, will have access to educational services provided by LACOE.
TOTAL	10	

Issues and Analysis:

This proposal is in compliance with the provisions of the California Education Code Sections 48915 (d), 48915 (f), 48915.01, 48916.1, and 48926.

Attachments:

Attachment A - AB 922 - Los Angeles County Plan for Expelled Students 2024.

Informatives:

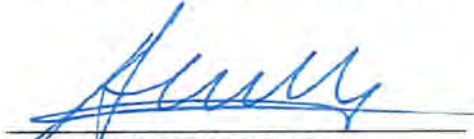
Not Applicable.

Submitted:

05/07/24

File #: Rep-279-23/24, Version: 1

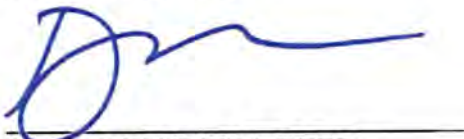
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:

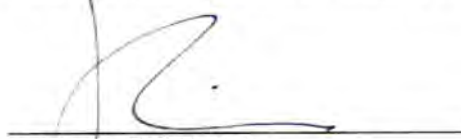

ANDRÉS E. CHAIT
Chief of School Operations
Division of School Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED & PRESENTED BY:


JOEL E. CISNEROS
Administrator
Student Health and Human Services

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

LOS ANGELES COUNTY PLAN FOR EXPELLED STUDENTS

2024

A description of educational services under
California Education Code § 48926

Prepared by



**Los Angeles County
Office of Education**

Leading Educators ▪ Supporting Students ▪ Serving Communities



**Los Angeles County
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Los Angeles County Plan for Expelled Pupils

(Education Code § 48926)

Prepared by:

Division of Student Support Services
Division of Student Programs
Division of Pupil Services

Los Angeles County Office of Education

Los Angeles County Plan for Expelled Pupils

Los Angeles County Office of Education

and

ABC Unified School District	Lawndale School District
Acton-Agua Dulce Unified School District	Lennox School District
Alhambra Unified School District	Little Lake City School District
Antelope Valley Union High School District	Long Beach Unified School District
Arcadia Unified School District	Los Angeles Unified School District
Azusa Unified School District	Los Nietos School District
Baldwin Park Unified School District	Lynwood Unified School District
Bassett Unified School District	Manhattan Beach Unified School District
Bellflower Unified School District	Monrovia Unified School District
Beverly Hills Unified School District	Montebello Unified School District
Bonita Unified School District	Mountain View School District
Burbank Unified School District	Newhall School District
Castaic Union School District	Norwalk-La Mirada Unified School District
Centinela Valley Union High School District	Palmdale School District
Charter Oak Unified School District	Palos Verdes Peninsula Unified School District
Claremont Unified School District	Paramount Unified School District
Compton Unified School District	Pasadena Unified School District
Covina-Valley Unified School District	Pomona Unified School District
Culver City Unified School District	Redondo Beach Unified School District
Downey Unified School District	Rosemead School District
Duarte Unified School District	Rowland Unified School District
East Whittier City School District	San Gabriel Unified School District
Eastside Union School District	San Marino Unified School District
El Monte City School District	Santa Monica-Malibu Unified School District
El Monte Union High School District	Saugus Union School District
El Rancho Unified School District	South Pasadena Unified School District
El Segundo Unified School District	South Whittier School District
Garvey School District	Sulphur Springs Union School District
Glendale Unified School District	Temple City Unified School District
Glendora Unified School District	Torrance Unified School District
Gorman School District	Valle Lindo School District
Hacienda-La Puente Unified School District	Walnut Valley Unified School District
Hawthorne School District	West Covina Unified School District
Hermosa Beach City School District	Westside Union School District
Hughes-Elizabeth Lakes Union School District	Whittier City School District
Inglewood Unified School District	Whittier Union High School District
Keppel Union School District	William S. Hart Union High School District
La Cañada Unified School District	Wilsona School District
Lancaster School District	Wiseburn Unified School District
Las Virgenes Unified School District	

Los Angeles County Plan for Expelled Pupils

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Los Angeles County Plan for Expelled Pupils (Education Code § 48926)

Introduction

The Los Angeles County Superintendent of Schools, in collaboration with the Superintendents of the school districts within the county, have developed the county-wide plan for providing educational services to expelled pupils within the county pursuant to California Education Code § 48926. In addressing the needs of all expelled pupils, the countywide plan shall:

- enumerate existing educational alternatives for expelled pupils;
- identify gaps in educational services to expelled pupils;
- identify strategies for filling those gaps in services; and
- identify alternative placements for pupils who are expelled and placed in district community day school programs but who fail to meet the terms and conditions of their required rehabilitation plan or who pose a danger to other district pupils, as determined by the governing board.

Education Code § 48916.1 provides that, at the time an expulsion of a pupil is ordered, the governing board shall ensure that an education program is provided to the pupil who is subject to the expulsion order for the period of the expulsion. Any educational program provided pursuant to this section may be operated by the school district, the county superintendent of schools, a consortium of districts or in joint agreement with the county superintendent of schools.

To address the needs of expelled pupils, a number of alternative education programs have been developed by local school districts and the Los Angeles County Office of Education to provide continuing educational opportunities.

Profile

The Los Angeles County Office of Education (LACOE) is the nation's largest regional education agency. Los Angeles County has approximately 10 million residents, including about 1.3 million students in 80 school districts. Our largest district, Los Angeles Unified School District, has an enrollment of 384,822 students, while our smallest, Gorman School District, has 83 students. Our countywide service area encompasses 88 cities and 4,084 square miles.

LACOE is a premier provider of integrated educational programs and services from birth to adulthood in a richly diverse and multicultural global environment.

LACOE uses a variety of service delivery systems to eliminate educational barriers associated with poverty and racial divisiveness in education, enabling students to exceed state and national standards. These services include universal, quality, early childhood education, effective data driven programs for all students, and state of the art technical assistance.

LACOE organizes its infrastructure to provide leadership in creating unique, nationally recognized models in education, including models for innovative staff development and training. LACOE earns the public's confidence by: Making the school the hub of the community, making the most efficient use of financial resources, bridging the "digital divide" in technology access and content, and developing collaborative partnerships for students, parents, and community. LACOE embraces a culture of diversity that promotes an inclusive, prosperous learning and workplace environment.

Division of Student Programs

The Division of Student Programs (DSP) serves approximately 3,000 students throughout Los Angeles County. DSP provides educational services in a variety of settings, including one juvenile hall school, two secured youth treatment facilities, four camp schools, three County Community Schools, three independent study programs, and two specialized high schools. All school sites are WASC accredited and offer Common Core curriculum and a variety of supplemental services intended to address the learning needs of individual students. Additionally, school staff work closely with the Probation Department and the Los Angeles County Department of Mental Health to provide comprehensive educational services for all students. The mission of the DSP is to ensure student success by providing quality academic programs supported by an organizational culture that is focused on data and Professional Learning Communities. DSP is a placement option for expelled students who are referred to LACOE.

Division of Pupil Services

The Division of Pupil Services (DPS) supports the Principal Administrative Units (PAUs) in the implementation of programs and initiatives to facilitate the academic, emotional, mental, social, and physical health of all students. This support is provided through professional development and the collaborative efforts of staff members in the Camps Assessment Unit, Compliance Support Services, Health Services, Neglected/Delinquent and Homeless Youth Services, as well as Counseling, Nursing and Aftercare Services. The mission of the DPS is to meet the academic, social, emotional, and physical needs of the students in LACOE's Educational Programs.

Division of Student Support Services

The Division of Student Support Services (SSS) serves school districts, charter schools and LACOE programs by providing training and technical assistance in the areas of student enrollment and records; compulsory attendance and truancy reduction; custody of minors; support for students experiencing homelessness and youth in foster care; safe school planning; threat assessment, emergency response and crisis intervention; physical and behavioral health services; alcohol, tobacco and other drug prevention and intervention; Expanded Learning; Positive Behavioral Interventions and Supports and student discipline. SSS is responsible for hearing expulsion appeals on behalf of the county Board of Education and for providing support to students, parents, and school districts throughout the expulsion appeal process.

Educational Alternatives for Expelled Pupils

School districts located within Los Angeles County provide a number of options for expelled pupils, depending on the specific violation of §§ 48900, 48900.2, 48900.3, 48900.4 and 48900.7 of the California Education Code (EC). The alternative educational program to which an expelled pupil may be assigned is preceded by a decision of the local governing board, which may provide for one of the following expulsion orders, describing the student's educational placement:

1. Suspended enforcement of the expulsion order with placement on the same school campus [EC § 48917(a)];
2. Suspended enforcement of the expulsion order with placement on a different school campus within the district or an alternative district program, such as opportunity program, Independent Study or continuation high school [EC § 48917(a)];
3. Expulsion with a referral to a District Community Day School program, if available [EC § 48660]; or,
4. Expulsion with a referral to a County Community Day School or other appropriate program operated by the Los Angeles County Office of Education [EC § 1981(c)].

A pupil who is expelled for an act listed in subdivision (c) of EC § 48915 (mandatory expulsion recommendation) shall be assigned to a program of study that meets all of the following conditions:

- (1) Is appropriately prepared to accommodate pupils who exhibit discipline concerns.
- (2) Is not provided at a comprehensive middle, junior, or senior high school, or at any elementary school.
- (3) Is not housed at the school site attended by the pupil at the time of suspension.

At the time an expulsion of a student is ordered, the governing board of the school district shall ensure that an educational program is provided to the student who is subject to the expulsion order for the period of the expulsion. Any educational program provided may be operated by the school district, the county superintendent of schools, a consortium of districts or in joint agreement with the county superintendent of schools.

District Operated Programs

The range of alternative educational programs currently offered by school districts throughout Los Angeles County includes the following options:

- Community Day Schools;
- Independent Study/Virtual Academy;
- Opportunity Class/School;
- Continuation High School;
- Charter School; and
- Home Study.

If a school district is unable to provide a suitable program, or if the expelled student fails to meet the terms and conditions of their rehabilitation plan or continues to pose a danger to other district students, as determined by the governing board, the district may refer the expelled student to the Los Angeles County Office of Education for possible placement in a program operated by the Division of Student Programs (DSP).

County Operated Programs

The Los Angeles County Office of Education currently provides a variety of alternative educational programs that are designed to help students:

- take a renewed interest in school and learning;
- attend school consistently;
- set and attain academic and career goals; and
- recover credits and get back on track for graduation.

Specifically, these programs are designed to serve:

- Students experiencing difficulty at home or school;
- Students experiencing homelessness and youth in foster care;
- Students who are on probation or students who need to work full-time to support themselves and/or their families; and
- Students who have been expelled for whom a district operated educational program is not available.

Programs designed to serve the above identified pupil populations include those operated by the LACOE Division of Student Programs (DSP) include:

- County Community Schools;
- Independent Study (operated in conjunction with a classroom option)

As previously stated, at the time an expulsion of a student is ordered, the governing board of the school district shall ensure that an educational program is provided for the student subject to the expulsion order. For districts that may be unable to provide students who commit serious behavior violations with an alternative program that meets the restrictive requirements of California Education Code § 48915(d) (see Appendix), selected county programs may provide viable options.

It is anticipated that the majority of expelled students who are referred to the county office for placement in an alternative program will be assigned to a County Community School program. Community Schools operated by the county are designed to provide interventions for middle school students in grade 8 and high school students in grades 9 to 12.

Educational Service Gaps and Strategies to Address Service Gaps

Section 48926 of the California Education Code provides that each county superintendent of schools in counties that operate community schools pursuant to Section 1980 “shall develop a plan for providing education services to all expelled pupils in that county.” One of the required elements of the plan is to identify gaps in educational services to expelled students and strategies for filling those service gaps.

Service Gap 1 – Limited Local Alternative Placement Options and Transportation Services

Largely, survey participants stated that educational alternative strategies and services implemented were relatively successful with expelled students. However, many districts reported that access to local, alternative placements impeded their ability to effectively and efficiently provide a suitable educational placement option. This was compounded by the closure of LACOE County Community Schools (CCS). Distance and lack of transportation to alternative sites were also cited as barriers to accessible and feasible educational placement options.

Districts highlighted the critical need for alternative educational placements to meet the needs of identified student groups such as English Language Development students, students with disabilities and elementary school students.

Proposed Strategy: The utilization of preventative measures, such as alternatives to suspension, Restorative Practices, and multi-tiered system of supports to teach behavioral expectations, when implemented with fidelity, can be effective strategies to promote pro-social behaviors among students. The implementation of a universal screening tool or data review process can identify specific students in need of targeted and relevant Tier II intervention. Leveraging district and school-site support services can intercept a student's progression through the tiers of support. Promotion of universal strategies would likely circumvent escalating student behavior and thus disciplinary action as a response. A strong prevention model at the K-5 level can be a determinant of positive student outcomes and can circumvent the progression of maladaptive behaviors; therefore, keeping early learners from being subject to punitive and exclusionary disciplinary action.

As of July 1, 2024, SB 274 prohibits school districts and charter schools from suspending or expelling students in grades K-12 for willful defiance. It is highly encouraged that these local educational agencies (LEAs) ramp up timely in-school interventions or supports to address student behavior. Culturally responsive research-based programs, such as Positive Behavioral Interventions and Supports (PBIS), Socio-Emotional Learning (SEL) strategies and Restorative Practices, can be integrated into the school day and tailored to address students' needs, according to their cognitive and developmental level. Additionally, these interventions support student engagement, contribute to conflict resolution skills, and promote a positive school climate.

Unfortunately, there may be instances when a student's behavior requires punitive consequences and removal from the instructional program. When a student violates certain sections of the Education Code, they may be subject to either a mandatory or discretionary recommendation for expulsion when other means of correction are not feasible or have repeatedly failed to bring about proper conduct, or the student poses a danger to themselves or others. Upon Board approval of an expulsion recommendation, the student is to be placed in an alternative educational placement for

the duration of the expulsion order with an accompanying Rehabilitation Plan for possible reinstatement.

With the dwindling alternative educational placements, districts are encouraged to establish partnerships with neighboring districts or charter schools to secure placement options for students with an active expulsion order. A Memorandum of Understanding (MOU) can be a mutual agreement, permitting LEAs to coordinate efforts to share the responsibility of providing alternative placements for expelled students. MOUs can expand placement options by facilitating the assignment to and enrollment of an expelled student in a neighboring LEA. Another option would be for the establishment or expansion of comprehensive virtual programs that provide instructional and support services to best meet the needs of the student and improve the likelihood that the conditions of the Rehabilitation Plan are satisfactorily met. It should be noted that an online program for expelled students should integrate regular check-ins to promote student engagement and to address any potential feelings of isolation or detachment.

Regarding expelled students with disabilities, it would behoove districts that lack an appropriate alternative placement to collaborate with their Special Education Local Plan Area (SELPA) to determine placement options based on the offer of Free and Appropriate Public Education (FAPE) per their Individualized Education Program (IEP). Transportation, as a related service, may be a related service agreed upon in the student's IEP. This conglomeration of neighboring districts, charters, and County Offices of Education can provide local control and accountability to provide all Special Education assurances guaranteed in federal law.

Students from special populations under an expulsion order, such as students experiencing homelessness or in foster care, may be entitled to transportation to an alternative placement outside their district boundaries per federal and state law. Also, youth from such populations may access subsidized stop gap measures, such as Hop, Skip, Drive, to their assigned alternative placement. Districts can leverage their respective Homeless or Foster Liaisons to determine eligibility and coordinate transportation resources.

LACOE'S Child Welfare and Attendance Unit is a resource that provides ongoing in-person and virtual training on other means of correction as well as consultation, technical assistance, and publications related to student discipline and other means of correction for LEAs to access. The monthly CWA Cafe and Regional Learning Network (RLN) Meetings are established community of practice meetings that provide legislative guidance, technical assistance, and opportunities for discussion and sharing of best practices related to complex cases pertaining to student disciplinary matters and prevention.

Service Gap 2 – Lack of Mental Health Supports

Survey respondents indicated concerns about students' access to needed mental health support. Per self-report, students indicated that they are experiencing higher levels of anxiety and experiencing challenges with coping and regulation. Mental health and counseling are critical resources to help students stabilize in the school environment and address any behavioral concerns.

Proposed Strategy: LACOE's Division of Student Support Services offers myriad professional development and training opportunities to address students' behavioral health needs.

The School Counselor Academy offered by the Mental Health and Counseling Unit provides valuable training, such as Universal Screening for Social/Emotional and Behavioral Needs, to

support the identification of students in need of targeted intervention. Participants are provided with practical, tiered strategies to effectively respond to the mental health and counseling needs of students. Youth Mental Health First Aid is offered free of charge upon request and is designed to teach adults who regularly interact with adolescents how to assist them during mental health challenges or in times of crisis, using a five-step action plan.

School-based interventions, coupled with referrals to community-based services, can strengthen positive outcomes for students. It is highly encouraged that LEAs utilize multi-disciplinary teams, such as Student Study Teams (SST), Coordination of Services Teams (COST), and IEP teams, as mechanisms to formulate individualized interventions for students as well as a process to monitor student progress and the effectiveness of interventions.

EAs are encouraged to participate in the Community Schools Initiative to cultivate community resources to improve student wellbeing and outcomes. The California Department of Education launched the California Community Schools Partnership Program (CCSPP), which implements a shared decision-making model and creates community foundations that sustain mental and behavioral health for students and families.

Service Gap 3 – Improved Transition Support to/from School of Residence to LACOE CCS

Survey respondents expressed the need for information about and clarification on the referral process and student eligibility for admittance to LACOE CCS sites. Moreover, survey participants requested a streamlined referral process to CCS sites with improved coordination and communication between referring districts and LACOE.

Proposed Strategy: LACOE currently operates three County Community School (CCS) sites that can enroll and support the educational and socio-emotional needs of expelled students. LACOE’s Division of Student Programs can host informational meetings related to the referral process to a LACOE CCS site or Independent Study program along with an overview of the accredited curriculum, supportive services offered to students and families and community partnerships for enrichment and employment opportunities.

Informational meetings can address and limit inappropriate referrals to CCS sites as well as provide a platform for LEAs to connect with LACOE CCS staff and opportunities to become familiar with LACOE’s model of support for students and to ask questions. Connecting LEAs with LACOE staff can facilitate student enrollment and improve transitions for students by providing a “warm handoff” as students enter or exit the CCS program.

Transition Counselors are critical to the support needed for students as they transition from a CCS program to school of residence or career/college related program. Transition Counselors provide guidance to students during the transition and ensure appropriate follow-up by maintaining contact with youth for up to six months. They work closely with student, family, and community partners to remove any barriers that might impede successful progress.

Alternative Placements for Pupils who Fail to Meet the Terms and Conditions of their Rehabilitation Plan or who Pose a Danger to Others

California Education Code § 48926 requires the county-wide plan to further identify alternative placements for pupils who are expelled and placed in district community day school programs but who fail to meet the terms and conditions of their rehabilitation plan or who pose a danger to other district pupils, as determined by the governing board.

In Los Angeles County, expelled pupils who are unsuccessful in a district operated community day school, who fail to meet the terms and conditions of their rehabilitation plan or who pose a danger to other district pupils may be referred to a County Community School or other appropriate alternative program operated by the county office of education.

Options for students who fail to meet the terms and conditions of their rehabilitation plan may, in select cases, include referral and placement in a juvenile hall setting or juvenile camp or possibly a transfer to a program operated by an adjacent County Office of Education.

Currently, the Los Angeles County Office of Education does not have any formal agreements with adjacent county offices of education.

Appendix

COUNTYWIDE PLAN FOR PROVISION OF EDUCATIONAL SERVICES TO EXPELLED STUDENTS QUESTIONNAIRE – SUMMARY OF DATA February 2024

Introduction

This section includes an overview of the data generated by the AB 922 survey. The survey was provided via email to all school district superintendents, many of whom delegated completion of the survey to the Director of Student Support Services, Supervisor of Child Welfare and Attendance, or Director of Alternative Education. All Los Angeles County school districts completed the survey either via email or by phone.

Suspended enforcement of the expulsion

In order to facilitate the participation of an expelled student in programs located within the school district, districts are required to suspend enforcement of the expulsion order. The student must comply with all stipulations of the expulsion order related to behavior, attendance, and participation in rehabilitation programs, such as counseling. Non-compliance with the expulsion order stipulations could trigger a full expulsion and removal from the district's program. A referral to a LACOE County Community School would be an alternative placement for such students.

Current Educational Alternatives Available	K-5	6-8	9-12	Total Districts Offering Program
Community Day Schools	3	16	16	17
County Community School Referrals	4	11	11	18
Opportunity Programs	3	9	5	11
Continuation High Schools	0	0	12	12
Charter Schools	1	4	3	5
Independent Study Programs	20	28	22	31
Other Alternative Programs	3	4	2	4

Have these strategies/services been successful? If not, what were the obstacles or gaps?

Forty-nine districts surveyed felt that the available alternative programs were at least somewhat successful. Fourteen districts responded that this question was not applicable, or they had not expelled students or needed alternative programs. One responded that there are no local options for students who are expelled; two districts did not answer the question. Multiple reasons were provided for the success of alternative programs, including flexible learning environments along with small group and one-on-one instruction to facilitate credit recovery and to help students learn to manage behaviors that caused them to be expelled. Incorporation of restorative justice, social-emotional learning, counseling and mental health services and case management to create a supportive environment for students and families also resulted in positive outcomes.

Obstacles or gaps identified for alternative programs include (# of responses):

- Limited local and LACOE CDS options (22), especially for students in sixth grade and below (2), students with disabilities (6) and students acquiring English as a second language (1);
- Referred students do not enroll (2) or do not attend regularly (3);

- Lack of transportation to LACOE CDS sites (10);
- Inadequate academic progress (2);
- Limited mental health services (4);
- Unable to reach parents or garner parent involvement and support (3);
- Insufficient return on investment for local CDS programs as it is expensive to staff a school for so few students (4); and
- Inability to find teachers willing to serve at an alternative site (3).

Identified obstacles or gaps specific to Independent Study included difficulty accessing online programs (1), minimal success with course completion (1), inconsistent check-ins with students (1) and isolation (1).

Suggestions or strategies for filling any service gaps which limit the ability to ensure the availability of educational services for expelled students

School district personnel shared the following suggestions and strategies (# of responses):

- Increase placement options, especially within LACOE (14) and LAUSD (1) as well as for the elementary grades (5) and for students with disabilities (8) and who are acquiring English as a second language (1);
- Create more opportunity programs that offer small class sizes (1) and Independent Study programs (2);
- Establish partnerships with neighboring districts (4) and with charter schools (1);
- Provide or subsidize transportation to CCS sites due to distance from school of residence (3);
- Increase communication between LACOE and referring school district to ensure student enrollment (1) and to monitor student progress (1);
- Increase mental health support for students and families (2) and support services for students who are a danger to themselves or others (1);
- Hire Child Welfare and Attendance Advisors to provide attendance and counseling services (1);
- Increase referrals to diversion programs (1) and to community agencies for mental health and counseling services (1);
- Establish a clearinghouse of resources to increase student motivation and engagement (1) and have districts share best practices regarding successful placements for students who are expelled (1);
- Require parent education (1);
- Involve DCFS or law enforcement when parent/guardian does not enroll the student (1);
- Increase funding to implement local CDS programs (1);
- Hire a full time counselor to provide individual counseling, assist with goal setting and school-based mental health services (1);
- Rotate content specific teachers into continuation high school teachers throughout the school day (1); and
- Increase professional development for teachers working in alternative settings (1) and administrator to student ratio (1).

Alternative placements for students who fail to meet the terms and conditions of the expulsion rehabilitation plan or pose a danger to other district students, as determined by the governing board

The following responses indicate strategies districts use when a student has failed to meet the conditions of the rehabilitation plan approved at the time of the expulsion order or who pose a danger to other district students (# of responses):

- Continue in the alternative setting (4);
- Involuntarily transfer to another site in the school district (2);
- Refer for Independent Study (4) or to a continuation high school (1), neighboring district (2), local charter school (5), private school (1);
- Refer to a LACOE CDS (8) or to Sunburst Academy (1);
- Coordinate enforcement with Los Angeles County Probation or the courts (1);

- Refer to law enforcement programs (1);
- Create a behavior plan (1); and
- Provide targeted interventions (1), additional counseling (1) and wrap around services (1).

What are your best practices, at the site and district levels, of behavioral intervention approaches and options used to minimize the number of suspensions leading to expulsions, of expulsions being ordered, and to support students returning from expulsions?

In most cases, EC § 48900.5 requires districts to attempt other means of correction prior to suspension. The following are best practices school districts have successfully used to minimize the number of suspensions and expulsions (# of responses):

- Academic support and interventions, including multi-tiered system of supports (12), Student Study Teams (6), Response to Intervention (2) and unspecified alternative learning options (1);
- Behavior support and management strategies, including Positive Behavioral Interventions and Supports (36), restorative practices (36), social-emotional learning curriculum (12), School Attendance Review Team/School Attendance Review Board (12), Check in/Check Out (6), behavior contracts (4), peer mediation (3), Saturday School (3), Board-Certified Behavior Analysts (2), behaviorist/interventionists (2), detention (2), reflection journals (1), mentoring (1), Opportunity Rooms (1), Behavior Review Intervention Team (BRIT) meeting (1), functional behavior assessment (1) and unspecified Other Means of Correction (14);
- Counseling and mental health support, including Wellness Centers (7), Wellness Counselors/Support (7), Trauma Informed Practices (7), telehealth (2), Tobacco Use Prevention Education and vaping resources (2), universal screener (1) and unspecified Counseling/Mental Health Support (20);
- Diversity, Equity and Inclusion (DEI) strategies, including equity/rapport building professional development for staff (2) and unspecified DEI support (1);
- Opportunity transfer (2);
- Parent workshops (11);
- Referrals to community agencies (13), such as the Department of Mental Health's School Threat Assessment Team (1) and juvenile diversion programs (1) and to school resource officers (1); and
- LACOE trainings (3).
 - Specific programs mentioned as best practices include: Capturing Kids' Heart (4), Boys Town Model (1), Character Counts (1), Character Strong (1), EduClimber (1), Healthy Futures (1), Leader in Me (3), Safe and Civil Schools (2), Second Step (1), Stanford Toolkit (1), Turn Around Rooms (1), Vector Student Online Module (1), Youth Court (1) and YVape (1).



District Operated Educational Alternatives

District	School	Grades Served
Antelope Valley Union High School District	Phoenix High Community Day	9-12
Bassett Unified	Nueva Vista Continuation High School	9-12
Bellflower Unified	Bellflower Alternative Education Center	7-12
Burbank Unified	Burbank USD Community Day	7-12
Charter Oak Unified	Bridges Community Day	6-12
Compton Unified	Compton Community Day Middle	6-8
Compton Unified	Compton Community Day High	9-12
Downey Unified	Woodruff Academy	7-10
Eastside Union Elementary	Eastside Academy/Transitional Learning Center	K-8
El Monte Union High	El Monte Union High School Community Day	9-12
Glendale Unified	Jewel City Community Day	7-10
Hacienda la Puente Unified	Valley Community Day	7-12
Lancaster Elementary	RISE Community Day School	6-8
Los Angeles Unified	Elementary Community Day School	K-6
Los Angeles Unified	Secondary Community Day School	7-9
Los Angeles Unified	Aggeler Community Day	7-12
Los Angeles Unified	Alonzo Community Day	7-12
Los Angeles Unified	Johnston Community Day	7-12
Los Angeles Unified	London Community Day	7-12
Los Angeles Unified	Tri-C Community Day	9-12
Montebello Unified	Montebello Community Day	7-12
Palmdale Elementary	Oak Tree Community Day	K-8
Paramount Unified	Paramount Unified Community Day	7-12
Redondo Beach Unified	Redondo Beach Learning Academy	6-12
Temple City Unified	Temple City Virtual Academy	7-12
Temple City Unified	Dr. Doug Sears Learning Center	9-12
Torrance Unified	Gene Drevno Community Day	7-12
West Covina Unified	Monterey Park CDS	9-12



**Los Angeles County
Office of Education**

Serving Students • Supporting Communities • Leading Educators

Division of Student Programs
(562) 922-8715 • Gaytan_Gilbert@lacoe.edu

Referral for Services for Expelled Students

STUDENT INFORMATION Please type or print legibly and complete ALL information.

8. NAME OF STUDENT (LAST, FIRST AND MIDDLE INITIAL)			4. BIRTHDATE	5. GENDER ☐ M ☐ F ☐ N
6. AGE	7. GRADE	8. STUDENT STATE I.D. NUMBER (10 DIGITS)	9. AKA (Also Known As)	
10. NAME OF SCHOOL LAST ATTENDED			11. SCHOOL DISTRICT	
12. ADDRESS (NUMBER, STREET, APARTMENT NO., CITY AND ZIP CODE)				
13. ETHNICITY (PLEASE CHECK) ☐ American Indian/Alaskan Native ☐ Asian ☐ Black ☐ Filipino ☐ Hispanic ☐ Pacific Islander ☐ White ☐ Other (specify)			14. LUNCH ELIGIBILITY ☐ Free ☐ Base ☐ Reduced	
15. SPECIAL EDUCATION ☐ No ☐ Yes		16. LANGUAGE PROFICIENCY * ☐ EL ☐ FEP ☐ EO		17. INTERPRETER NEEDED IF "YES," SPECIFY LANGUAGE ☐ No ☐ Yes
18. 504 PLAN ☐ No ☐ Yes			19. STUDENT IS ON PROBATION IF "YES," GIVE FIRST AND LAST NAME OF PROBATION OFFICER ☐ No ☐ Yes	
20. PHONE # OF PROBATION OFFICER ()			21. ADDRESS OF PROBATION OFFICER	
22. COMMENTS				

Parent(s)/Guardian(s)

23. FIRST AND LAST NAME OF PARENT(S)/GUARDIAN(S)	24. EMAIL ADDRESS
25. ADDRESS (IF DIFFERENT FROM STUDENT'S ABOVE)	26. TELEPHONE OR CELL NUMBER ()

Expulsion

27. REASON(S) FOR EXPULSION (CHECK APPROPRIATE SUB-SECTION LETTER(S) THAT APPLY) EC 48900: ☐ a (1) ☐ a (2) ☐ b ☐ c ☐ d ☐ e ☐ f ☐ g ☐ h ☐ i ☐ j ☐ k ☐ l ☐ m ☐ n ☐ o ☐ p ☐ q ☐ r ☐ t			
EC 48900.2 ☐ Sexual Harassment	EC 48900.3 ☐ Hate Violence	EC 48900.4 ☐ Threat and Intimidation	EC 48900.7 ☐ Terroristic Threats
EC 48915 (a) ☐ 1. Causing serious physical injury	☐ 2. Possession of knife, explosive, dangerous object	☐ 3. Unlawful possession of a controlled substance	
☐ 4. Robbery or extortion		☐ 5. Assault or battery upon school employee	
EC 48915 (c) ☐ 1. Possessing, selling, or furnishing firearms	☐ 4. Sexual assault/sexual batter	☐ 5. Possession of an explosive	
☐ 2. Brandishing a knife		☐ 3. Unlawfully selling a controlled substance	
28. 48918(j) DATE LOCAL BOARD VOTED TO EXPEL		29. 48916(a) DATE OF REVIEW FOR RE ADMISSION	

Referred By

30. NAME OF PERSON MAKING REFERRAL (FIRST, LAST)		31. TITLE/SCHOOL DISTRICT	
32. TELEPHONE NUMBER ()	33. FAX ()	34. E-MAIL	
35. SIGNATURE			36. DATE SIGNED

Attach the following:

- Copy of Expulsion Order Section 48918 (j)
- Rehabilitation Plan required pursuant to Section 48916 (b)
- Photocopy of Student Record; i.e., IEP (Goals and Objectives, Psychological Report, Manifestation Determination Report, Transition Plan, Behavior Support), Transcripts, Test Scores, Immunization Records, Home Language Survey, *CELDT Results, Assessment, Placement, and Designation.
- 504 Plan

Please return completed referral including required documents to:

Division of Student Programs
Los Angeles County Office of Education
9300 Imperial Hwy. EC 2077
Downey, CA 90242-2890
(562) 922-8715 • Gaytan_Gilbert@lacoe.edu

For Office Use Only – Enrollment of Student Section (1981)

DATE REFERRED (MONTH/DAY/YEAR)	REFERRED TO (AU)
☐ 1981 (a) ☐ 48915 (b) or ☐ 48915 (e) ☐ 1981 (b) ☐ SARB Referred or ☐ Parent Request / District Approved ☐ 1981 (c) Probation Referred ☐ 300 ☐ 601 ☐ 602 ☐ 654 (Not currently enrolled in school) ☐ Currently on Probation ☐ Parole ☐ Expelled 48915 (c) ☐ 1981 (d) Homeless Student ☐ 1982.5 Other ☐ Expelled 48915 (a)	
Comments	

FORM NO. 307-014 Rev 11/18/2025

California Education Code
§ 48915(d)

(d) The governing board shall order a pupil expelled upon finding that the pupil committed an act listed in subdivision (c), and shall refer that pupil to a program of study that meets all of the following conditions:

- (1) Is appropriately prepared to accommodate pupils who exhibit discipline problems.
- (2) Is not provided at a comprehensive middle, junior, or senior high school, or at any elementary school.
- (3) Is not housed at the school site attended by the pupil at the time of suspension.

California Education Code
§ 48915(f)

(f) The governing board shall refer a pupil who has been expelled pursuant to subdivision (b) or (e) to a program of study which meets all of the conditions specified in subdivision (d).

Notwithstanding this subdivision, with respect to a pupil expelled pursuant to subdivision (e), if the county superintendent of schools certifies that an alternative program of study is not available at a site away from a comprehensive middle, junior, or senior high school, or an elementary school, and that the only option for placement is at another comprehensive middle, junior, or senior high school, or another elementary school, the pupil may be referred to a program of study that is provided at a comprehensive middle, junior, or senior high school, or at an elementary school.

California Education Code
§ 48915.01

If the governing board of a school district has established a community day school pursuant to Section 48661 on the same site as a comprehensive middle, junior, or senior high school, or at any elementary school, the governing board does not have to meet the condition in paragraph (2) of subdivision (d) of Section 48915 when the board, pursuant to subdivision (f) of Section 48915, refers a pupil to a program of study and that program of study is at the community day school. All the other conditions of subdivision (d) of Section 48915 are applicable to the referral as required by subdivision (f) of Section 48915.

California Education Code
§ 48916.1

(a) At the time an expulsion of a pupil is ordered, the governing board of the school district shall ensure that an educational program is provided to the pupil who is subject to the expulsion order for the period of the expulsion. Except for pupils expelled pursuant to subdivision (d) of Section 48915, the governing board of a school district is required to implement the provisions of this section only to the extent funds are appropriated for this purpose in the annual Budget Act or other legislation, or both.

(b) Notwithstanding any other provision of law, any educational program provided pursuant to subdivision (a) may be operated by the school district, the county superintendent of schools, or a consortium of districts or in joint agreement with the county superintendent of schools. (c) Any educational program provided pursuant to subdivision (b) shall not be situated within or on the grounds of the school from which the pupil was expelled.

(d) If the pupil who is subject to the expulsion order was expelled from any of kindergarten or grades 1 to 6, inclusive, the educational program provided pursuant to subdivision (b) shall not be combined or merged with educational programs offered to pupils in any of grades 7 to 12, inclusive. The district or county program is the only program required to be provided to expelled pupils as determined by the governing board of the school district. The subdivision, as it relates to the separation of pupils by grade levels does not apply to community day schools offering instruction in any of the kindergarten and grades 1 to 8 inclusive, and established in accordance with Section 48660.

(e) (1) Each school district shall maintain the following data:

- (A) The number of pupils recommended for expulsion.
- (B) The grounds for each recommended expulsion.
- (C) Whether the pupil was subsequently expelled.
- (D) Whether the expulsion order was suspended.
- (E) The type of referral made after the expulsion.
- (F) The disposition of the pupil after the end of the period of expulsion.

(2) The Superintendent may require a school district to report this data as part of the coordinated compliance review. If a school district does not report outcome data as required by this subdivision, the Superintendent may not apportion any further money to the school district pursuant to Section 48664 until the school district is in compliance with this subdivision. Before withholding the apportionment of funds to a school district pursuant to this subdivision, the Superintendent shall give written notice to the governing board of the school district that the school district has failed to report the data required by paragraph (1) and that the school district has 30 calendar days from the date of the written notice of noncompliance to report the requested data and thereby avoid the withholding of the apportionment of funds.

(f) If the county superintendent of schools is unable for any reason to serve the expelled pupils of a school district within the county, the governing board of that school district may enter into an agreement with a county superintendent of schools in another county to provide education services for the district's expelled pupils.

California Education Code
§ 48926

Each county superintendent of schools in counties that operate community schools pursuant to Section 1980, in conjunction with superintendents of the school districts within the county, shall develop a plan for providing education services to all expelled pupils in that county. The plan shall be adopted by the governing board of each school district within the county and by the county board of education.

The plan shall enumerate existing educational alternatives for expelled pupils, identify gaps in educational services to expelled pupils, and strategies for filling those service gaps. The plan shall also identify alternative placements for pupils who are expelled and placed in district community day school programs, but who fail to meet the terms and conditions of their rehabilitation plan or who pose a danger to other district pupils, as determined by the governing board.

Each county superintendent of schools, in conjunction with the superintendents of the school districts, shall submit to the Superintendent of Public Instruction the county plan for providing educational services to all expelled pupils in the county no later than June 30, 1997, and shall submit a triennial update to the plan to the Superintendent of Public Instruction, including the outcome data pursuant to Section 48916.1, on June 30th thereafter.